

Dinesh Chauhan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 May 2024 · 2024:AHC:77867-DB · WRIT - C No. 14326 of 2024 · **Writ disposed of; petitioner relegated to Clause 6.5.**

HEADNOTE

A consumer disputing a distribution-corporation bill has a sufficient remedy under Clause 6.5 of the Electricity Supply Code, 2005; Article 226 interference is declined and the writ is disposed of leaving the petitioner to avail that remedy in accordance with law.

FACTUAL SUMMARY

The petitioner, Dinesh Chauhan, invoked Article 226 of the Constitution before the Allahabad High Court to dispute a bill dated 31 July 2023 issued by the distribution corporation. Counsel for the petitioner, the Standing Counsel for the State, and counsel for the distribution corporation were heard. At the hearing the petitioner's grievance was confined to that bill. The Court did not examine the correctness of the demand on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill dispute — Clause 6.5 remedy

HOLDING

Clause 6.5 of the Electricity Supply Code, 2005 affords a sufficient remedy to a consumer seeking to dispute a bill; Article 226 interference is declined and the petitioner is left to avail that remedy in accordance with law.

¶ 2-3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing a distribution-corporation bill has a sufficient remedy under Clause 6.5 of the Electricity Supply Code, 2005; Article 226 interference is declined and the writ is disposed of leaving the petitioner to avail that remedy in accordance with law. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 31.07.2023

¶ 2-3